

23CHCV00785 23CHCV00785

County: los-angeles

Division: Civil Law and Motion

Department: F46

Hearing date: 2026-09-08

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=CHA%2CF46%2C09%2F08%2F2026

Source SHA-256: b1e8c685c5e11c6b90f05c128b9919a2b8035aacbf42501d782ccda0fff0deff

Case Number: 23CHCV00785 Hearing Date: September 8, 2026 Dept: F46

EX

PARTE APPLICATION

Plaintiff's ex parte application for leave to file a Second

Amended Complaint is DENIED WITHOUT PREJUDICE to a properly noticed motion for leave to amend pursuant to California Rules of Court, rule 3.1324.

The Court rules on the application without a hearing

pursuant to Code of Civil Procedure section 166(a). No appearance is required.

ABSENCE

OF EXIGENT CIRCUMSTANCES

California Rules of Court, rule 3.1202(c) requires an

applicant seeking ex parte relief to make an affirmative factual showing, through competent testimony based on personal knowledge, of irreparable harm, immediate danger, or another statutory basis for granting relief on an ex parte basis.

Plaintiff has not made the required showing. Plaintiff

states that counsel learned of allegedly additional insurance coverage in August 2026, presented the proposed Second Amended Complaint to the clerk on August 28, 2026, and was advised that leave of court was required. Plaintiff does not identify any imminent deadline, approaching proceeding, irreparable harm, immediate danger, or other circumstance requiring the Court to act before a regularly noticed motion can be heard.

The clerk's refusal to file an amended pleading without

leave of court does not create an emergency. It reflects the ordinary procedural requirement that plaintiff obtain leave to amend. Likewise, the fact that the proposed pleading has been completed and lodged establishes that it is ready for consideration; it does not establish a need for immediate judicial action.

The reported absence of opposition does not excuse compliance with the requirements governing ex parte relief. Nonopposition may be relevant to the disposition of a noticed motion, but it does not convert an ordinary request for leave to amend into an emergency.

ADMONITION REGARDING EX PARTE PRACTICE

Plaintiff's counsel is admonished that ex parte applications are reserved for matters requiring immediate judicial action because of irreparable harm, immediate danger, or another legally recognized exigency. Ex parte procedure is not an alternative means of shortening the notice period for an ordinary law-and-motion matter, even where the requested relief may be unopposed.

This application does not present an appropriate use of ex parte procedure. Unnecessary ex parte applications consume limited judicial resources and congest an already full-capacity calendar, including when the Court is engaged in trial. Counsel shall reserve future ex parte applications for circumstances satisfying California Rules of Court, rule 3.1202(c), and shall proceed by regularly noticed motion when no genuine emergency exists.

FURTHER PROCEEDINGS

This ruling does not determine the merits of plaintiff's request for leave to amend. Plaintiff may seek such relief through a properly noticed motion complying with California Rules of Court, rule 3.1324 and all other applicable requirements.

The Clerk is directed to give notice.